IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

CA (CAA)/6(CHE)/2023

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Arrangement (Demerger)*

of

K.H. FOUNDATION
[CIN: U73100TN1991NPL021372]
A Company incorporated u/s. 25 of the Companies Act, 1956
Registered Office at:
KH Centre, 15/2, College Road,
Nungambakkam,
Chennai – 600 006

... 1st Applicant Company / Demerged Company

And

K.H. EDUCATIONAL FOUNDATION
[CIN: U80220TN2020NPL140230]
A Company incorporated u/s. 8 of the Companies Act, 2013
Registered Office at:
KH Centre, 15/2, College Road,
Nungambakkam,
Chennai – 600 006

... 2nd Applicant Company / Resulting Company

And

Their Respective Shareholders and Creditors

Order Pronounced on ***20th March, 2023***

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ASHOK KUMAR BHARADWAJ, MEMBER (JUDICIAL)

SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): R. Inbaraju, Advocate

ORDER

***Per:* ASHOK KUMAR BHARADWAJ, MEMBER (JUDICIAL)**

Under consideration is a joint Company Application filed by the Applicant Companies, namely **K.H. FOUNDATION** (for brevity "Demerged Company") and **K.H. EDUCATIONAL FOUNDATION** (for brevity "Resulting Company") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement (Demerger) (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also annexed as "Annexure – A13" to the Application.

2. The Applicant Companies in this Company Application has sought for the following reliefs in relation to their respective meeting(s);

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
DEMERGED COMPANY	*To dispense with*	NIL	NIL
RESULTING COMPANY	*To dispense with*	NIL	NIL

3. In relation to both the Applicant Companies, affidavit(s) in support of the above application is sworn by one Malack Abdul Wahab, who is the Authorised Signatory of the Applicant Companies. The Board Resolutions authorising the said Authorised Signatories are placed on record as "Annexure – 11".The Registered Office of the Applicant Companies are at KH Centre, 15/2, College Road, Nungambakkam, Chennai – 600 006 which is within the purview of Registrar of Companies, Chennai and thus within the territorial jurisdiction of this Bench.

4. **K.H. FOUNDATION**
(1ST APPLICANT COMPANY / DEMERGED COMPANY)

(i) There are 10(Ten) Equity Shareholders and list of shareholders by the Chartered Accountants to this effect is placed at page 213 and consent affidavits given by all the Equity Shareholders constituting 100% of the total value have been obtained and placed at page nos.214 to 243 of the typed set filed with the application.

(ii) There is NIL Secured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page no.244of the typed set filed with the application. Hence the necessity of convening, holding and conducting the meeting does not arise.

(iii) There is NIL Unsecured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page no. 245 of the typed set filed with the

application. Hence the necessity of convening, holding and conducting the meeting does not arise.

5. **K.H. EDUCATIONAL FOUNDATION (2ND APPLICANT COMPANY / RESULTING COMPANY)**

(i) There are 10 (Ten) Equity Shareholders and list of shareholders by the Chartered Accountants to this effect is placed at page 246 and consent affidavits given by all the Equity Shareholders constituting 100% of the total value have been obtained and placed at page nos. 247 to 276 of the typed set filed with the application.

(ii) There is NIL Secured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page no. 277of the typed set filed with the application. Hence the necessity of convening, holding and conducting the meeting does not arise.

(iii) There is NIL Unsecured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page no. 278of the typed set filed with the application. Hence the necessity of convening, holding and conducting the meeting does not arise.

6. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

7. It is stated that the 1st Applicant Company is incorporated under Section 25 of Companies Act, 1956 on 06.09.1991. The Authorized Share Capital of the 1st Applicant Company is as follows:

PARTICULARS	AMOUNT (IN INR)
Authorized Share Capital	
20,000 Equity Shares of Rs.100 each	20,00,000
Total	**20,00,000**
Issued, Subscribed and Paid – up Share capital	
5,007 Equity Shares of Rs.100 each	5,00,700
Total	**5,00,700**

8. It is stated that the 2ndApplicant Company is incorporated under Section 8 of Companies Act, 2013 on 18.12.2020.The Authorized Share Capital of the 2nd Applicant Company is as follows:

PARTICULARS	AMOUNT (IN INR)
Authorized Share Capital	
15,000 Equity Shares of Rs.100 each	15,00,000
Total	**15,00,000**
Issued, Subscribed and Paid – up Share capital	
8,000 Equity Shares of Rs.100 each	8,00,000
Total	**8,00,000**

9. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts of the Applicant Companies for the year ended 31.03.2022.

10. The Board of Directors of the Applicant Companies vide meeting(s) held on 20.01.2023 has unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the Applicant Companies.

11. The Appointed date as specified in the Scheme Shall be **01.04.2022**.

12. The Statutory Auditors of the Applicant Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificate of the Statutory Auditors of the Applicant Companies issued in this regard is placed as "Annexure – 23 & 24" of the typed set filed along with the Application respectively.

13. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions : -

A. IN RELATION TO THE DEMERGED COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented that there are 10 (Ten) Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all the equity shareholders and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since it is represented that there is NIL Secured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented that there is NIL Unsecured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

B. IN RELATION TO THE RESULTING COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented that there are 10 (Ten) Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all the equity shareholders and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since it is represented by that there is NIL Secured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented that there is NIL Unsecured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

14. The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order. Accordingly, the Application stands **allowed**.

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

ASHOK KUMAR BHARADWAJ
MEMBER (JUDICIAL)

V.Shreekumar

Order pronounced under Rule 151 of NCLT Rules 2016, by Hon'ble Technical Member Sameer Kakar on behalf of the Bench comprising of ***Ashok Kumar Bhardwaj, Member (Judicial)*** *and* ***Sameer Kakar, Member (Technical).***

M. Nallunchacgul
(Court Officer)